



CHAPTER xlii.

An Act to confirm a Provisional Order of the Minister of Health relating to the Fylde Water Board. A.D. 1930.
[20th March 1930.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Fylde Water Board) Act 1930. Short title.

[Ch. xlii.] *Ministry of Health Provisional [20 GEO. 5.]
Order Confirmation (Fylde Water Board) Act, 1930.*

A.D. 1930.

SCHEDULE.

FYLDE WATER BOARD.

*Fylde Water
Order.*

Provisional Order amending a local Act.

WHEREAS by section 40 of the Fylde Water Board Act 1925 the Fylde Water Board were authorised to establish in accordance with a scheme to be approved by the Minister of Health a fund to be called the consolidated loans fund;

And whereas the Fylde Water Board have applied to the Minister of Health for the issue of a provisional order to amend the local Act in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

1. This order may be cited as the Fylde Water Order 1929 and shall come into operation on the date of the Act of Parliament confirming it.

Amendment
of 15 & 16
Geo. 5. c. lv.
s. 40.

2. Section 40 of the Fylde Water Board Act 1925 shall be amended as follows:—

(1) The following words shall be added immediately after paragraph (c) of subsection (1):—

“ and; (d) any moneys forming part but not for
“ the time being required for the purposes of any
“ reserve accident renewals depreciation contingent
“ superannuation or other similar fund (in this
“ section called a ‘lending fund’) provided that
“ interest shall be paid to the lending fund on any
“ moneys so paid to the consolidated loans fund
“ and for the time being not repaid to the lending
“ fund such interest being calculated at a rate per
“ centum per annum to be determined by the
“ Board and be equal as nearly as may be to the
“ average rate of interest payable by the Board
“ on their current mortgage borrowings and shall
“ be charged upon and paid out of the revenues
“ of the Board.”

[20 GEO. 5.] *Ministry of Health Provisional [Ch. xlii.]*
Order Confirmation (Fylde Water Board) Act, 1930.

(2) The following proviso shall be added at the end of A.D. 1930.
subsection (2):—

“ Provided that any moneys forming part of a *Fylde Water*
“ lending fund and paid to the consolidated loans *Order.*
“ fund shall be repaid to the lending fund as and
“ when required for the purposes of the lending
“ fund.”

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